Revision Date:
8/1/2024

Background:
The Department of Health Care Services (DHCS) entered into an agreement with the California Department of Corrections and Rehabilitation (CDCR) to facilitate the completion, and submission, of Medi-Cal applications for incarcerated individuals, prior to their release. The intent of this agreement is to allow incarcerated individuals timely access to Medi-Cal benefits upon their release.

Purpose:
To provide policy guidance for the State Prison Pre-Release application program.

Policy:
A. Eligibility
Pre-release applications are submitted to the county by State Prison Staff via the Transitional Case Management Program (TCMP), around 90 days prior to release. These applications must be processed using existing Medi-Cal policies and procedures, however, submission of an application earlier than 90 days prior to release is not grounds for denial. The incarcerated individual must be evaluated for the month of release, and the beginning date of aid will be the first of the month of release.

B. Verifications
The chart below summarizes how common eligibility verification requirements can be met as part of the pre-release application process:

Verification	**Requirement**
Household Size	The household size is based on the household of the incarcerated individual upon release.
Income	Reported income must be verified using current Medi-Cal rules (reasonable compatibility with the Federal Data Services Hub information), however if the income is not reasonably compatible and the incarcerated individual cannot resolve discrepancy due to incarceration, grant eligibility based on the customer's statement and resolve the discrepancy upon their release using the existing request for information timelines.
Identity	Verification that the incarcerated person in custody from the cover sheet or statement from the facility can be used to verify identity if there is no other evidence available (e.g. Social Security Administration (SSA) verification) or if there is no contradicting evidence to what is stated on the application.
Deficit Reduction Act (DRA) Citizenship and Identity	Verification is required but consider that eligibility can be granted pending verification of citizenship and identity.
Asset Verification (Non-MAGI)	Verification may be obtained after release if the reported property does not make the applicant ineligible. Follow existing request for information timelines to obtain verification after release.
Residence	Incarcerated status may be used to verify California residence if all the following applies: • No other evidence is available. • CDCR confirms that the applicant is in custody in a CA correctional facility (statement on the cover letter). • The incarcerated individual declares an intent to reside in CA.

<table>
<tr><td></td><td>• There is no evidence to suggest the incarcerated individual will not be a CA resident in the month of release.</td></tr>
<tr><td>Social Security Number (SSN)</td><td>Must be verified in accordance with regular Medi-Cal rules.</td></tr>
<tr><td>Household Tax Filer Status</td><td>Tax Filer Status must be determined based on existing Medi-Cal rules.
<table>
<tr><th>If the incarcerated individual is...</th><th>Then...</th></tr>
<tr><td>a member of a household, and returning to that household,</td><td>add the incarcerated individual back to the active family case effective the month of release.</td></tr>
<tr><td>single, or tax filing status is uncertain,</td><td>treat the individual as a single individual.</td></tr>
</table></td></tr>
</table>

C. Confidentiality

- During incarceration, share information only with the authorized representative listed on the single streamlined application (usually the TCMP worker listed on the cover letter).
- After release, share information only with the individual, and or entity listed on the CDCR form 7385-A (if provided).

Procedure:

Process State Prison Pre-Release applications using procedures in Processing Guide 13 – Incarcerated Customers

References:

ACWDLs 09-16, 14-26, and 24-04
MEDIL 16-19

Sunset Date:

This policy will be reviewed for continuance by 8/31/2027.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services

Incarcerated Customers – State Prison MCIEP	Number	Page
	06.02.02	1 of 2

Revision Date:
8/1/2024

Background:
The California Prison Health Care Services (CPHCS) is responsible for the cost of medical care of individuals incarcerated in California state prisons. Federal Medicaid funds are available to pay for inpatient medical care received by incarcerated individuals outside of the correctional facility. The Department of Corrections and Rehabilitation (CDCR), the Department of HealthCare Services (DHCS) and CPHCS have developed the State Prison Medi-Cal Inmate Eligibility Program (MCIEP) to obtain the maximum number of federal dollars for the medical care of incarcerated individuals.

When an incarcerated individual receives inpatient medical care:
- CPHCS staff forwards applications, verifications, and medical records for State Program Disability Determination Service Division (DDSD) applications to DHCS.
- DHCS performs eligibility determinations and forwards eligibility information to CPHCS.

NOTE: All eligibility determinations for State Prison MCIEP are completed by DHCS.

Purpose:
Provide information about State Prison MCIEP and the county's role.

Policy:
A. Eligibility Requirements
Incarcerated individuals are eligible to MCIEP if they meet the following criteria:
- Are incarcerated in a California State Prison.
- Receive inpatient hospital services off the grounds of the correctional facility.
- Are hospitalized for 24 hours or more.
- Receive allowable inpatient hospital services.
- Meet all Medi-Cal eligibility requirements such as linkage, deprivation, alien/citizenship status, income and property.

B. Aid Codes
When an individual incarcerated in a state prison is found eligible to MCIEP, DHCS will place the beneficiary in one of the following aid codes:
- F1 - Title XIX, Medi-Cal Zero Share of cost (SOC) State Incarcerated Individuals.
- G1- Title XIX, Medi-Cal SOC State Incarcerated Individuals.
- F2 - Title XIX/Title XXI Medi-Cal Zero SOC Undocumented State Incarcerated Individuals.
- G2 – Title XIX/Title XXI Medi-Cal SOC Undocumented State Incarcerated Individuals.

C. County Participation
As part of the state prison MCIEP, DHCS refers the following incarcerated individuals to the county via the MCIEP transmittal form when:
- Case clearance of an incarcerated individual reveals an open Medi-Cal case for the individual.
- Infants are born to MCIEP eligible incarcerated individual.
- MCIEP beneficiaries are released from prison while on the MCIEP program.

The below chart lists required actions related to state MCIEP:

Situation	Action

A parolee is released from Prison while eligible to MCIEP.	Complete an ex parte review and redetermination.
Infant is born to MCIEP eligible incarcerated individual.	When an incarcerated individual is MCIEP eligible at the time of their infant's birth, the child is automatically deemed eligible for Medi-Cal without a separate application.
There is an open Medi-Cal case for incarcerated individual.	When DHCS notifies the county of an MCIEP applicant that is active on a county Medi-Cal case, suspend the incarcerated individual, re-evaluate the rest of the case members, and send timely notice for any changes.
There is interaction with the pre-release application process.	If a MCIEP beneficiary requests a pre-release application from the county through the pre-release application process, that new application must be denied, and the ex parte determination completed since the applicant already has active Medi-Cal through MCIEP.
A parolee applies for Medi-Cal.	MCIEP beneficiaries released from custody within 12 months of their MCIEP application are not required to complete a new Medi-Cal application. When a case clearance at the county reveals that an applicant has eligibility under MCIEP, request the case file from DHCS and complete the ex parte determination. Request the case file via secure email to MCIEP@dhcs.ca.gov.

Procedure:
Procedures for processing the MCIEP referrals received from DHCS can be found in Processing Guide 13 – Incarcerated Customers, Section 3.

References:
ACWDLs 11-27, 14-26, and 24-04

Sunset Date:
This policy will be reviewed for continuance by 8/31/2027.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services

Incarcerated Customers – County Jail Pre-Release Applications	Number	Page
	06.02.03	1 of 1

Revision Date:
8/1/2024

Background:
State law allows counties to assist individuals incarcerated in county jail with their applications for health insurance affordability programs and clarified that counties can process applications for incarcerated individuals while they are in custody. Customers incarcerated in a correctional facility who apply for Medi-Cal must be evaluated. Residence in a correctional facility does not disqualify applicants from Medi-Cal, however if otherwise eligible their eligibility must be suspended until they are no longer incarcerated. This section was updated to include the requirement to notify the Sheriff's department of the outcome of the eligibility determination.

Purpose:
To provide policy guidance related to county jail pre-release applications.

Policy:
Pre-release applications are submitted around 90 days prior to the applicant's release, are processed using existing Medi-Cal policies and procedures, and the incarcerated individual is evaluated for the month of release. The county jail may submit an application at any time, do not deny an application if submitted earlier than 90 days prior to release.

Follow the state pre-release verification guidance in 06.02.02.C when processing county jail pre-release applications.

Forward applications for individuals incarcerated in county jails releasing to other counties to the county of release. When an application is received for a customer active in another county, request an inter-county transfer.

Notify the Sheriff Department of the result of the application and if the eligibility determination is not expected to be complete prior to the customer's release date via secure email. Refer to processing guide 13 – Incarcerated Customers, section 2 for more detailed information.

Procedure:
When processing county pre-release applications, follow procedures in Processing Guide 13 – Incarcerated Customers, Section 2.

References:
ACWDLs 14-26, 22-27, and 24-04

Sunset Date:
This policy will be reviewed for continuance on or by 8/31/2027.

Approval for Release:

8-6-24

Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
8/1/2024

Background:
The County Medi-Cal Inmate Eligibility Program (MCIEP) provides limited Medi-Cal coverage to otherwise eligible individuals incarcerated in county jail, who receive acute inpatient hospital services provided off the grounds of the county correctional facility. The Department of Health Care Services (DHCS) provided procedures for reporting Social Security Income (SSI) Medi-Cal eligible MCIEP applicants to Social Security Administration (SSA). SSA now has their own method for gathering this information, so this section was revised to remove the requirement to send MCIEP applicant information to SSA.

Purpose:
To provide policy guidance related to county MCIEP.

Policy:
A. Eligibility
MCIEP is limited scope Medi-Cal coverage that covers incarcerated customers for inpatient care received off the grounds of the facility. To be eligible for County MCIEP, an individual incarcerated in a county jail must be otherwise eligible for Medi-Cal (following the current Medi-Cal policies, procedures, and order of evaluation).

NOTE: Incarcerated customers are not eligible to Advanced Premium Tax Credits (APTC).

B. Verifications
Existing Medi-Cal verification rules apply to MCIEP applications. The chart below lists clarifications received from The Department of Health Care Services (DHCS) and modifications of the policy allowed for MCIEP applicants:

Subject	Policy
Household Size	• The household size is based on the household of the incarcerated individual, including their family at home. • The parent of an incarcerated juvenile may claim the child as a tax dependent, if the child lived with their parents for more than half the year.
Income	For Modified Adjusted Gross Income (MAGI) evaluations count all known income for the incarcerated individual, including: • Income from a spouse at home in the applicant's tax household. • Income in jail accounts including retirement pensions, Veteran's Administration funds, donations or wages received while incarcerated. • Income shown in Income and Eligibility Verification System (IEVS). • Income reported on the application.
In-Kind Income	For Non-MAGI evaluations, housing, utilities, food and clothing provided by the facility are considered in-kind income.
Identity	Verification that the incarcerated individual is in custody from the cover sheet can be used to verify identity if there is no other evidence available (e.g. SSA verification) and there is no contradicting evidence to what is stated on the application.
Deficit Reduction Act Citizenship and Identity	Verification is required but remember that eligibility can be granted pending verification of citizenship and identity.
Residence	Incarceration Status may be used to verify California residence if no other verification is available.

C. Annual Redetermination

The Period of Eligibility for MCIEP is 12 months. Incarcerated individuals will remain active on MCIEP as long as they are incarcerated and otherwise eligible to Medi-Cal.

Annual Redetermination requirements apply to incarcerated individuals covered under MCIEP. Changes in circumstances, such as aging out of the MAGI new adult group, must be processed according to existing redetermination policy. If the individual becomes Medi-Cal ineligible, MCIEP must be discontinued with timely notice.

D. Notice of Action

Notice of Action for MCIEP must be sent to the authorized representative, not the incarcerated individual.

E. Interaction with Suspension of Benefits

When an incarcerated individual is suspended from Medi-Cal due to incarceration and subsequently receives inpatient care services, they may be placed on the MCIEP aid code based on their previous Medi-Cal aid code.

F. Incarcerated Individuals Released while MCIEP Active

A new application is not required. Verify continuing eligibility through an ex parte review and Medi-Cal eligibility redetermination.

G. County of Responsibility

The county of responsibility for County MCIEP is the county where the individual is incarcerated.

If San Diego receives an MCIEP application for an individual incarcerated in another county, workers will complete the courtesy application process by forwarding the application, and all information collected, to the county of responsibility within 15 days of the application date.

If the incarcerated individual has a suspended Medi-Cal case in another county, coordinate with that county to lift the suspense, and then process the MCIEP application. Only the county that implemented the suspense can lift it.

Procedure:

When processing MCIEP applications, follow the application procedures in Processing Guide 13 – Incarcerated Customers, Section 4.

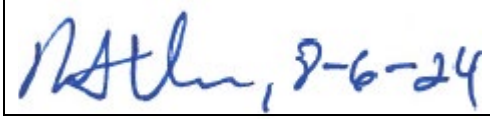
References:

ACWDLs 13-18, 14-26, 24-04
MEDILs 16-23, 17-20

Sunset Date:

This policy will be reviewed for continuance by 8/31/2027.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
8/1/2024

Background:
Suspense policy requires that rather than terminating Medi-Cal eligibility, it must be suspended for incarcerated individuals who were Medi-Cal eligible at the time of incarceration. The suspense policy started with juveniles and expanded to adult county and state incarcerated individuals effective 1/1/14. Suspension does not apply to adults incarcerated prior to 1/1/14. This section was updated to include new suspension timeframes and policies related to the Support Act.

Purpose:
To provide policy guidance related to suspending benefits for incarcerated individuals.

Policy:
A. Eligibility
Incarcerated customers who were active Medi-Cal at the time of their incarceration must have their benefits suspended during incarceration and then restored without a new application upon release. Suspense is not required until the incarcerated individual has been in custody for more than 28 days. No suspense is required if the customer is released by the 28th day of incarceration. The suspense is active the date of incarceration or the date the county is notified plus ten-day notice. Workers can accept customer statement of release date.

B. Time limit
There is no time limit for suspense and incarcerated individuals must remain suspended for the duration of their incarceration, however if an incarcerated individual is suspended for over a year, a redetermination is required at release if their eligibility has not been redetermined within a year of release.

C. Pre-Release Applications
If an incarcerated individual applies for Medi-Cal they can have that eligibility evaluated, granted if otherwise eligible for Medi-Cal, and then immediately suspended for the duration of their incarceration.

D. Removing the Suspension
Eligibility must be restored for suspended incarcerated individuals without a new application, effective the date the County receives the report that the customer has been released, or the date they are no longer considered incarcerated. The suspense lift must be processed within one day of notification. If the suspense lasted longer than a year, a redetermination must be completed using the ex parte process.

E. Redetermination
Customers in cases by themselves are not required to complete an annual redetermination while incarcerated and their eligibility must not be discontinued unless they are no longer incarcerated or deceased. Suspended customers in cases with family may be discontinued if the family is found no longer Medi-Cal eligible during redetermination. This includes cases discontinued for failure to complete the annual redetermination. Suspended individuals may be transitioned to new aid codes when there is a change in circumstances such as aging-out of a Medi-Cal aid code.

If an individual has been suspended for more than one year, they must complete a redetermination upon release if they haven't had their eligibility redetermined within a year of release.

F. Notice of Action

Suspense notices must be sent to the home in cases where the incarcerated person is in a case with family, to the jail when the customer is in a case by themselves, or an authorized representative if applicable.

G. Inter-County Transfer (ICT)
Some incarcerated individuals in San Diego may have active or suspended benefits in another county. When San Diego workers receive notice that a customer active in another county is incarcerated in San Diego, contact the other county and let them know of the incarceration date so the other county can suspend benefits. When an incarcerated individual has suspended benefits in another county is set to release in San Diego, request the other county lifts the suspension and sends an ICT.

Procedures:
Procedures for processing suspensions are in Processing Guide 13 – Incarcerated Customers, section 5.

References:
ACWDLs 13-18, 14-26, 21-22, 22-26, and 24-04

Sunset Date:
This policy will be reviewed for continuance by 8/31/2027.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
August 1, 2026

Background:
Federal law states that federal funds cannot be used for medical services provided to incarcerated individuals, except for covered inpatient services received off the grounds of the correctional facility. The Department of Health Care Services (DHCS) implemented the Incarcerated Verification Program (IVP) using the Nationwide Prisoner Match (NPM) system to identify individuals who must have their eligibility suspended due to incarceration.

Purpose:
To provide policy guidance related to the IVP. This section was revised to include changes to the IVP process.

Policy:
A. NPM Matching Process
The NPM matches Medi-Cal beneficiary information with the Social Security Administration's (SSA) Prisoner Update Program System database which contains data from jails, prisons and incarceration facilities. The NPM is the system for identifying individuals who must be suspended due to incarceration. The below table summarizes the IVP process.

Step	Action
1	DHCS completes a Medi-Cal Eligibility Data System (MEDS) data match with the NPM and California Department of Corrections and Rehabilitation (CDCR) to identify incarcerated Medi-Cal beneficiaries.
2	DHCS verifies the incarceration status of the matches through correctional facility websites and a third-party historical incarceration data network.
3	DHCS sends the county the list of verified incarcerated customers. This list is incorporated into the monthly NPM list published on the monthly reports section of the Management Reporting SharePoint.
4	Human Service Specialists suspend eligibility and notify the customer per suspense requirements in Medi-Cal Program Guide (MPG) 06.02.05.

B. Incarcerated Juveniles
The IVP focuses on incarcerated adults and does not include juveniles (individuals under age 21). Incarcerated juveniles are considered temporarily absent from the home and still part of the tax household unless there is evidence to the contrary.

C. Treatment of Other Household Members
The eligibility of other household members must be re-evaluated, and changes made with timely notice if the incarcerated adult is removed from the Non-MAGI Medi-Cal household due to no longer living in the home. Incarceration does not necessarily mean that the customer is removed from the MAGI household as the Internal Revenue Service (IRS) considers them temporarily absent and expected to return unless there is evidence to the contrary. MAGI Tax Household rules apply.

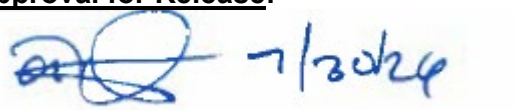
D. Reinstatement
Upon release from the correctional facility, follow the suspension lift policies in MPG 06.02.05.D and procedures in Processing Guide 13, section 5.

Procedure:
Procedures for processing suspensions are in Processing Guide 13.

References:
ACWDLs 12-39, 22-27,24-04, and 25-04

Sunset Date:
This policy will be reviewed for continuance on or by July 31, 2029.

Approval for Release:



Alberto Banuelos, Ph.D., Interim Director
Self-Sufficiency Services

Incarcerated Customers - County Compassionate Release (CCRP)/ Medical Probation Program (CMPP)	Number	Page
	06.02.07	1 of 2

Release Date:
4/1/2019

Background:
State law allows the county sheriff to release incarcerated individuals compassionately from a correctional facility based on a medical condition that caused their life expectancy to be less than six months and to request the court to grant medical probation for incarcerated individuals with an incapacitating medical condition. This section was updated to include information about the state version of the Medical Parole Program.

Purpose:
To provide policy guidance related to the compassionate release/medical probation program.

Policy:
A. Eligibility
Once the sheriff notifies the county that the customer meets CCRP/CMPP criteria (life expectancy less than six months, court granted medical probation, or resentencing for medically incapacitated incarcerated individuals requiring 24-hour care), evaluate for Medi-Cal using existing rules and order of evaluation, and place the incarcerated individual in the CCRP/CMPP aid code that matches their Medi-Cal eligibility.

B. Aid Codes

Aid Code	Description	MAGI/Non-MAGI Newly Eligible?
K6	Full Scope, zero SOC, citizen/satisfactory immigration status aged 19-64 with income up to 138% of FPL, including blind/disabled with income between 128% and 138 % of FPL. Newly Eligible.	MAGI Newly Eligible.
K7	Restricted Scope, Zero SOC, undocumented/ unsatisfactory immigration status, aged 19-64 with income up to 138% of FPL including disabled/blind with income 128% to 138% of FPL. Newly Eligible.	MAGI Newly Eligible.
K8	Full Scope, zero SOC, citizen/satisfactory immigration status aged 19-64, including disabled/blind with income below 128% of FPL.	MAGI Not Newly Eligible.
K9	Restricted Scope, zero SOC, undocumented/ unsatisfactory immigration status individuals aged 19-64, including disabled/blind, with income below 128% of FPL.	MAGI Not Newly Eligible.
J1	Full Scope, zero SOC, citizen/ satisfactory immigration status, Non-MAGI.	Non-MAGI.
J2	Full Scope with **SOC**, citizen/satisfactory immigration status, Non-MAGI.	Non-MAGI.
J3	Restricted Scope, zero SOC for undocumented/ unsatisfactory immigration status Non-MAGI.	Non-MAGI.
J4	Restricted Scope with **SOC** for undocumented/ unsatisfactory immigration status, Non-MAGI.	Non-MAGI.
J5	Full Scope, zero SOC/SOC, citizen/ satisfactory immigration status, aged 65 and over, and in LTC.	Non-MAGI.
J6	Restricted Scope, zero SOC/SOC, undocumented/ unsatisfactory immigration status, aged 65 and over, and in LTC.	Non-MAGI.
J7	Full Scope, zero SOC/SOC, citizen/ satisfactory immigration status, disabled, residing in an LTC facility.	Non-MAGI.
J8	Restricted Scope, zero SOC/SOC undocumented/unsatisfactory immigration status, disabled, residing in an LTC facility.	Non-MAGI.

C. Effective Dates

The beginning date of aid is the first of the month of application unless the customer is transitioning from MCIEP to CCRP/CMPP, then the BDOA would be date of transfer to the new care facility. The termination date for MCIEP would be the day before the transfer. Terminate CCRP/CMPP with timely notice at the end of the month.

D. MEDS Alerts

Alert 9574 will generate when beneficiaries reach age 64 and 10 months. Evaluate for Non-MAGI Medi-Cal upon receipt of this alert.

E. State Medical Parole Program

The state has a version of the Medical Parole program for individuals incarcerated in State correctional facilities. The state completes eligibility for these programs and the county does not have the ability to grant the following aid codes (informational only):

Aid Code	Description	MAGI/Non-MAGI Newly Eligible?
K2	Full-scope, zero SOC for State Medical Parolees.	Yes.
K3	Restricted Medi-Cal with no SOC for undocumented State Medical Parolees.	Yes.
K4	Full-scope, zero SOC for State Medical Parolees.	No.
K5	Restricted Medi-Cal with no SOC for undocumented State Medical Parolees.	No.

References:

ACWDLs 17-28, 18-20

Sunset Date:

This policy will be reviewed for continuance by 4/30/2022

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services